

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.1068 OF 2016

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure.

And

Md. Ismail Hossain Sonar being his legal heirs- Md. Yunus Ali and others

... Petitioners

-Versus-

Most. Rabeya Bewa being dead her heirs: A.H.M. Kamrul Bari and others

... Opposite parties

Mr. Md. Zahedul Haque, Advocate

.... For the petitioner.

Mr. Syed Altaf Hossain, Advocate

.... For the opposite party No.1.

Heard and Judgment on 31.10.2024.

This Rule was issued calling upon the opposite party No.1 to show cause as to why the judgment and decree dated 27.01.2016 passed by the learned Senior Assistant Judge, Sadar, Natore in S.C.C. No.3 of 1999 in decreeing the suit should not be set aside and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite party as plaintiff instituted above Small Causes Suit for eviction of the defendant from the disputed premises alleging that opposite party was a monthly tenant under the plaintiff for above premises. The defendant was a frequent defaulter in paying rent and the defendant refrained from paying rent of above premises from Chaitra 1405 B.S. As such the plaintiff issued a notice

under Section 106 of the Transfer of Property Act on 20.07.1999 terminating above tenancy.

Defendant No.1 contested the suit by filing a written statement alleging that the plaintiff was not the rightful owner and possessor of the disputed land nor the defendant was a monthly tenant under the plaintiff. The disputed land belonged to Hemchandra and Direndra Nath Saha and defendant was a tenant under above owners.

At trial plaintiff and defendant examined 1 witness each. Documents produced and proved by the plaintiff were marked as Exhibit Nos.1-5 series and those of the defendant were marked as Exhibit No.Ka and Kha series.

On consideration of the facts and circumstances of the case and evidence on record the learned Judge of the Small Causes Court decreed the suit.

Being aggrieved by above judgment and decree of the trial Court above defendant as petitioner moved to this Court and obtained this Rule.

Mr. Md. Zahedul Haque, learned Advocate for the petitioners submits that in the plaint the plaintiff did not provide necessary description as to acquisition of her title in the disputed land. It was merely stated that relevant R.S. Khatian was prepared in the name of the plaintiff which was not sufficient. The defendant has in his written statement denied that the plaintiff was the rightful owner and possessor

of the disputed land and also denied that the defendant was his monthly tenant. The defendant has raised a case of counter title and possession alleging that disputed premises belonged to Hemchandra and Direndra Nath Saha and he was their tenant. Since a complicated question as to title has arisen the case was not tenable in the Small Causes Court. The learned Judge of the trial Court should have dismissed the suit with direction upon the plaintiffs to institute a properly framed title suit for establishment of title and recovery of possession.

On the other hand Mr. Syed Altaf Hossain, learned Advocate for the opposite party No.1 submits that defendant No.1 Ismail Hossain has given evidence in this suit as DW1 and in this cross examination above witness has admitted all the claims of the plaintiff as to ownership and tenancy as set out in the plaint. On consideration of above legal evidence on record the learned Judge of the Small Causes Court has rightly decreed the suit which calls for no interference.

I have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

As mentioned above this is a Small Causes Suit for eviction of tenant. The plaintiff claims that he is the landlord and defendant No.1 is his monthly tenant for the disputed premises. In such a suit there is no scope for determination of complicated question of title and the plaintiff is solely required to prove the relationship of landlord and tenant.

In the plaint the plaintiff has merely stated that the relevant R.S. Khatian of the disputed premises stands in the name of the plaintiff and above claim has not been denied by the defendant. The defendant has denied that plaintiff was his landlord or he was a tenant under the plaintiff. The defendant has also set up a counter claim of title stating that the disputed premise belong to Hemchandra and Direndra Nath and he was their tenant.

But while giving evidence at trial as DW1 defendant No.1 has in his cross examination admitted all the claims including the relationship of landlord and tenant between the plaintiff and defendant for the disputed premises in unequivocal clear terms. The relevant part of the evidence of PW1 Ismail given in cross examination is reproduced below:

“বাদিনির স্বামী আবেদ আলীকে বাংলাদেশ স্বাধীন হওয়ার ৮/১০ বছর পর হইতে ভাড়া দেওয়া শুরু করি। আবেদ আলীকে ভাড়ার টাকা দেওয়ার সময় আবেদ আলী আমাকে রশিদ দিত এবং রশিদের মুড়ি বইতে আমি সাক্ষর করিতাম। আবেদ আলীর নিকট হইতে মোট দুইটি ঘড় ভাড়া লইয়া ছিলাম এবং ঐ দুইটি ঘরের বাবদে পৃথক রশিদে ভাড়া পরিশোধ করিতাম। বাদি পক্ষের দাখিলী ৬৫২, ৬৫৩ রশিদমূলে আমি আবেদ আলী বাংলা ১৩০৫ সনের পৌষ মাসের ভাড়া পরিশোধ করিয়াছি। আমি জামাত যাওয়ার পর আমার ছেলে ইলিয়াস আমার পক্ষ হইতে আবেদ আলীকে ঐ দোকানসহ ভাড়া অপর

দোকান ভাড়া ১৪০৫ সনের ফাল্গুন মাসের ভাড়ার টাকা
পরিশোধ করিয়াছি।”

As to the claim of the plaintiff that the defendant has stopped paying rent to the plaintiff for the above premises DW1 stated in his cross examination that since Chaitra 1405 B.S. he did not pay any rent to Abed Ali .

In above evidence defendant No.1 has admitted that he was a tenant under the plaintiff for the disputed premises and he used to pay rent to the husband of the plaintiff namely Abed Ali and during his causal absence rent was paid by his son Ilias. He has admitted that he did not pay any rent to the plaintiff since Chaitra 1405 B.S.

It is well settled that in a civil litigation admission may be made either in the pleadings or in the evidence and an admission is treated as a good evidence which is binding upon its maker and an admitted fact does not require further prove by legal evidence.

The defendant having admitted in his evidence at trial that he was a tenant of the plaintiff for the disputed premises and he had stopped paying rent to the plaintiff and the defendant having denied the title of the plaintiffs in the disputed land the defendant was liable to eviction.

In above view of the facts and circumstances of the case and materials on record I am unable to find any infirmity on illegality in the impugned judgment and decree calling for interference of this Court.

I find not substance in the revisional application under Section 115(1) of the Code of Criminal Procedure and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged.

However, there is no order as to costs.

Send down the lower Court's record immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER